



POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings :

- against - :

Police Officer Lester Sanchez :

Tax Registry No. 948561 :

Housing Borough Manhattan :

FINAL

ORDER

OF

DISMISSAL
-----X

Police Officer Lester Sanchez, Tax Registry No. 948561, Shield No. 7426, Social Security No. ending in [REDACTED], having been served with written notice, has been tried on written Charges and Specifications numbered 2013-9203, as set forth on form P.D. 468-121, dated March 29, 2013, and after a review of the entire record, Respondent has been found Guilty of Specifications 3, 6, 7, 9 and 10 and Not Guilty of Specifications 1, 2, 4, 5 and 8.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Lester Sanchez from the Police Service of the City of New York.


WILLIAM J. BRATTON
POLICE COMMISSIONER

June 21, 2016

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POLICE DEPARTMENT

May 24, 2016

-----X
In the Matter of the Charges and Specifications : Case No.
- against - : 2013-9203
Police Officer Lester Sanchez :
Tax Registry No. 948561 :
Housing Borough Manhattan :
-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable Nancy R. Ryan
Assistant Deputy Commissioner Trials

APPEARANCE:

For the Department: Pamela Naples, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent: Roger Blank, Esq.
373 Park Avenue South 6th Floor
New York, NY 10016

To:

HONORABLE WILLIAM J. BRATTON
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

Charges and Specifications:

1. Said Police Officer Lester Sanchez, assigned to the 75th Precinct, while off-duty, on or about March 9, 2013, within the confines of the 68th Precinct, in Kings County, did wrongfully operate a motor vehicle while under the influence of an intoxicant.
P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
NYS VTL 1192(3) - OPERATING A MOTOR VEHICLE WHILE
UNDER THE INFLUENCE OF ALCOHOL OR DRUGS
2. Said Police Officer Lester Sanchez, assigned as indicated in Specification #1, while off-duty, on the date and location indicated in Specification 31, did wrongfully operate a motor vehicle while his ability was impaired by the consumption of alcohol.
P.G. 203-10, Page 1, Paragraph 5- GENERAL REGULATIONS
NYS VTL 1192(1) - OPERATING A MOTOR VEHICLE WHILE
UNDER THE INFLUENCE OF ALCOHOL
3. Said Police Officer Lester Sanchez, assigned as indicated in Specification #1, while off-duty, on the date indicated in Specification #1, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer refused to submit to a breathalyzer test.
P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
4. Said Police Officer Lester Sanchez, assigned as indicated in Specification #1, while off-duty, on the date indicated in specification #1, did consume an intoxicant to the extent that said Police Officer was unfit for duty.
P.G. 203-04, Page 1, Paragraph 2 – UNFIT FOR DUTY
5. Said Police Officer Lester Sanchez, assigned as indicated in Specification 31, while off-duty, on the date indicated in Specification #1, did consume an intoxicant to the extent that said Police Officer was unfit for duty, while armed.
P.G.203-04, Page 1 Add'l Data –FITNESS FOR DUTY
6. Said Police Officer Lester Sanchez, assigned as indicated in Specification #1, while off-duty, on the indicated in Specification #1, did recklessly engage in conduct which created a substantial risk of serious physical injury to another person.
P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
NYS PENAL LAW SECTION 120.20 – RECKLESS
ENDANGERMENT IN THE SECOND DEGREE
7. Said Police Officer Lester Sanchez, assigned as indicated in Specification #1, while off-duty, on the date indicated in Specification #1, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Police Officer did wrongfully and without just cause interfere with an official Department investigation.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

8. Said Police Officer Lester Sanchez, assigned as indicated in Specification #1, while off-duty, on the date and location indicated in Specification #1, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Police Officer was involved in physical altercation with several individuals, known to this Department, inside AM Bar.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

9. Said Police Officer Lester Sanchez, assigned as indicated in Specification #1, while off-duty, on the date indicated in specification #1, failed to safeguard his firearm at all times, as required.

P.G. 204-08, Page 2, Paragraph 7- FIREARMS-GENERAL
REGULATIONS

10. Said Police Officer Lester Sanchez, while off-duty and assigned to the 75 Precinct, on or about March 9, 2013, after having been involved in a police incident, did fail and neglect to remain at the scene of the incident and/or request the response of the patrol supervisor, precinct of occurrence. *(As amended)*

P.G. 212-32, Page 1, Paragraph 1 and 2- OFF DUTY INCIDENTS
INVOLVING UNIFORMED MEMBERS OF THE SERVICE
COMMAND OPERATIONS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on July 1, 2015, November 17, 18 19, 2015, and February 8 and 9, 2016. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Chris Theo, Police Officer Patrick McMahon, Sergeant Denny Inirio, Sergeant Bethea Ivory, Sergeant Thomas Meehan, Shamar Thomas, Lieutenant Aluthea Caviness, and Sergeant Olga Jimenez as a witness. Respondent called Janice Caban, Edward Mamet as a witness and Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent Guilty of Specifications 3, 6, 7, 9 and 10 and Not Guilty of Specifications 1, 2, 4, 5 and 8.

FINDINGS AND ANALYSIS

It is undisputed that on March 9, 2013, Respondent was employed as a police officer assigned to the 75 Precinct. He had worked from 1500 to 2335 hours and, after finishing his tour, went to the AM Bar in Brooklyn, located in the confines of the 68 precinct. This case arises out of what transpired while Respondent was off-duty at the bar in the hours following.

Respondent went to the bar with Janice Caban, who was a Probationary Police Officer at the time.¹ (Tr. 383, 559) While he was at the bar, Respondent consumed some alcohol. (Tr. 562) Video footage from the bar and the area outside it depicts the following:

- 4:15:05- Respondent and Caban are seen dancing together and in a group with other bar patrons. (DX 8A, Camera 6)² They are both holding beer bottles at 4:29:00.
- 4:41:06- Respondent and Caban, both still holding beers, are again seen dancing. At 4:41:39, another woman turns away from her group and places herself between Respondent and Caban.
- 4:41:46- Caban attempts to continue dancing near Respondent, facing the other woman at 4:41:50.
- 4:41:49- A blonde woman watches the three briefly before elbowing Caban in her side at 4:41:50, causing her to be shoved to the side

¹ Following this incident, Caban was dismissed from the Department. As she was still in her probationary period, no hearing was held. An exact date of dismissal was not provided.

² Respondent identified himself and Caban while watching the video at trial. Respondent is wearing a black watch and a hat, which he repeatedly takes on and off. Caban is wearing a white shirt and boots and has her hair pulled back. (Tr. 610-11)

- 4:41:55- A fight breaks out and three additional women join. It appears they pull or attempt to pull Caban's hair. Respondent tries to intervene and grab Caban but is shoved back on two occasions.
- 4:42:08- The women pile on each other, almost hitting the floor, and it is difficult to discern exactly what is going on. Respondent is pushed back.
- 4:42:13- The altercation continues; the women get closer to the door and eventually exit. Respondent and a bouncer follow.
- 4:42:33- The altercation continues with more shoving outside. Respondent is shoved by one of the women at 4:32:35. By 4:42:55, approximately ten to fifteen people appear to be involved or in the immediate vicinity of the altercation. (DX 8A, Camera 7)
- 4:42:57- Caban gets behind Respondent. At 4:43:00, he pulls a firearm from his pocket and points it straight at the group.
- 4:43:05- Respondent and Caban are shoved further back out of the view of the camera
- 4:43:27- The women are seen hurrying back across the street to the bar before shoving Caban again. The women are then huddled together, moving backward toward the bar when Respondent comes back into the frame, walking toward them pointing his firearm. He briefly lowers it, then gets closer to them in the doorway of the bar, pointing it again. At 4:43:42, Caban goes around Respondent and seems to attempt to shove one of the women.
- 4:43:48- Respondent again points his firearm at the women. At this point, he is inches from them.
- 4:44:05- Caban and Respondent, still holding the firearm, walk away from the bar, out of camera view.
- 4:45:58- Respondent, now alone, walks back down the street and attempts to reenter the bar but is unable to gain entry. (DX 8A, Camera 7)

Respondent left Caban alone with his firearm at a nearby street corner while he attempted to return the bar to retrieve her belongings. (Tr. 391-94, 574) When he could not do so, Respondent got into his car and began to drive. He did not see Caban where he left her but was quickly stopped at a light at 72nd Street and 4th Avenue by Lieutenant Aluthea Caviness, then the platoon commander of the 68 Precinct, who was responding to a radio run indicating shots fired by a Hispanic male in a Honda Accord. (Tr. 184-85) Caviness located the vehicle within a minute of receiving the radio run and pulled in front of it. Respondent and Caviness had a conversation where he learned Respondent was a Member of the Service. Caviness then went to the scene outside the bar and recovered a shell casing. (Tr. 192-93) The casing was later tested and confirmed as having been shot from Respondent's off-duty firearm. Caviness returned to Respondent's vehicle and told

him to proceed to the 68 Precinct. (Tr. 195) Respondent drove his vehicle to the 68 Precinct with two Department vehicles escorting him and entered the stationhouse. (Tr. 195-96)

Respondent was asked to submit to a breathalyzer test but he did not take the test. (Tr. 203; DX 2) Caviness [REDACTED] found him unfit for duty. (DX 6) His belongings, including his cell phone, were taken from him and Caban called Respondent's cell phone several times. Eventually, Sergeant Thomas Meehan from IAB answered and later directed Caban to respond to the Precinct with the firearm, which Caban ultimately did. (Tr. 98, 128)

After one of the bouncers from the bar picked Respondent out of a line-up as the person who fired the shot outside the AM Bar, Respondent [REDACTED]

[REDACTED]

[REDACTED] (Tr. 42-43; DX 4) [REDACTED]

[REDACTED]

There are 10 Specifications in this case which can be divided between alcohol related and firearm discharge related misconduct. For organizational purposes, I will address them chronologically, analyzing first the five specifications related to the firearms discharge at AM Bar followed by the five alcohol-related specifications.

Specifications 6, 7, 8, 9 and 10 all relate to the altercation which took place in the vicinity of the AM Bar on March 9, 2013. Specification 6 charges Respondent with recklessly creating a substantial risk of serious physical injury to another person. Specification 7 charges him with wrongfully interfering in an official Department

[REDACTED]

investigation. Specification 8 charges him with getting into a fight inside the AM Bar. Specification 9 charges him with failing to safeguard his firearm and Specification 10 charges him with failing to remain at the scene of the incident he was involved in or requesting the response of the patrol supervisor in the precinct where the incident took place. At the heart of the dispute is whether Respondent was justified in discharging his firearm in response to the situation outside the AM Bar.

The evidence concerning this incident at the AM Bar comes from both testimony and video clips which document portions of the incident. Witnesses who were present at or in the vicinity of the bar and testified in this hearing were: Chris Theo, who resides across the street from the bar; Shamar Thomas, who was the doorman/bouncer at the AM Bar that evening; Janice Caban, who accompanied Respondent to the bar; and Respondent. Hearsay testimony in the form of an IAB interview with Person A, an employee at AM Bar, was also admitted into evidence.

Mr. Theo testified that he lived across the street from the AM Bar and was awakened in the early morning of March 9, 2013, when he heard yelling and fighting. (Tr. 11-12) He went to his window and observed "two girls beating up another girl right outside the A.M. Bar." (Tr. 12) He testified that he saw them "kind of dragging her by the hair." On cross-examination, he agreed that it was a pretty vicious assault. (Tr. 14)

Theo further testified that, "then the guy pulled out a gun, shot once – I think – I think it was once in the air and pointed the gun towards the girls, then he left..." (Tr. 12) He was unable to see the man's face or determine what was being said. (Tr. 12-13, 14) On cross-examination, he explained that he thought the man initially "maybe physically . . . tried to break up the fight" but said he could not recall. (Tr. 14) He subsequently

agreed, however, that the gun was shot after the man attempted to break up the fight unsuccessfully. (Tr. 15-16) Mr. Theo stated that he later saw the man come back alone and knock on the door of the bar, which was closed, before leaving the area again. (Tr. 13)

Mr. Shamar Thomas, the doorman at the AM bar, provided testimony similar to that of Mr. Theo but was able to provide more detail as he was closer to the scene. He testified that while he was working, someone told him a fight was going on and he went to the survey the incident. He recalled that there were four girls involved in the altercation in the bar and Thomas tried to get in the middle of them to break it up. (Tr. 148-49) He recalled there was another man "standing around watching."

Mr. Thomas and all of the women quickly got pushed out the door of the bar in the scuffle. (Tr. 150) He testified that multiple females were pulling hair and were locked onto each other but he was eventually successful in separating them once outside. He further testified that that was the end of the physical altercation. (Tr. 149-50, 158-59, 164) He did not see anyone getting injured, any fists being thrown or "people getting stomped on." (Tr. 149, 166) He also did not believe the fight was several girls ganging up on one individual but appeared to be two groups, "at least two on two." (Tr. 164) He acknowledged on cross-examination that he did not continually have the females in his field of vision as he walked back to the sidewalk area. (Tr. 161-63) Mr. Thomas did not call 911 at this point because he felt the assault had stopped and no one was injured. (Tr. 171) He emphasized that he viewed the altercation as "just hair pulling."

While he was still outside the bar, he saw a male standing near the fight walk away towards 3rd Avenue and then return. (Tr. 150) According to Mr. Thomas, this man,

while walking in the middle of the street, pointed a gun in the air and fired a shot. He then walked over to the women who were involved in the altercation and pointed his gun in their faces. (Tr. 151) The women appeared to be in "extreme fear." (Tr. 167) He never heard the male identify himself as a police officer or display a shield. (Tr. 152) When Mr. Thomas saw the male point the gun towards the females' faces he unsuccessfully tried to wrestle the gun away from him. Mr. Thomas then ran from the bar and called 911. (Tr. 154, 175) He then saw the man walking down the block followed by one of the women who was involved in the altercation. (Tr. 154)

Mr. Thomas next saw the male when he came back to the bar about three minutes later and banged on the door. (Tr. 156) Mr. Thomas explained that he was unable to gain entry to the bar because "everybody was terrified [and] . . . we had already locked the doors." (Tr. 155)

Person A, another bouncer at the AM Bar, did not testify at trial but a transcript and tape of his interview with IAB investigators on March 9, 2013, was admitted into evidence. (DX 3A & 3B) He recalled seeing Mr. Thomas, "interchanging with some girls that were fighting." (DX 3B at 3) Person A believed a group of females were all fighting with one female. (DX 3B at 6) Mr. Thomas, Person A, and the females went outside the bar. Person A recounted that he was telling Mr. Thomas to get back into the bar and leave the women outside when all of a sudden, "this guy comes from, like, out of nowhere and he just pulls a gun and he puts the gun in the girl's face." (DX 3B at 3) He further stated that the guy, "basically rubbed the gun in her face," and then he pointed the gun up in the air and shot. (DX 3B at 4) He estimated there were about ten people

outside in the middle of the street. (DX 3B at 5) Person A focused on getting people back inside the bar and did not see what the man later did with his gun.

Sergeant Denny Inirio of IAB was one of the investigators who interviewed Person A. (Tr. 36-42) Following that conversation, he received approval to conduct a lineup at the 72 Precinct. (Tr. 42-43) Inirio testified that Person A made a confirmatory identification of Respondent who was then rearrested for reckless endangerment. (Tr. 43; DX 4)

Conversely, Respondent and his girlfriend, Janice Caban, attempted to characterize the scene at the AM bar as dire and chaotic enough to warrant Respondent's discharge of his firearm. Caban testified that on the evening in question, she was working for the Department as a Probationary Police Officer. She had completed her tour of duty at 2000 hours on March 8, 2013. At approximately midnight on March 9th, Respondent picked Caban up at her house and they went to the AM Bar at approximately 0100 hours. (Tr. 383-85) Caban estimated that she had two to three drinks at the bar and was not intoxicated or impaired. (Tr. 386) For over two hours, she recalled talking with other people in the bar, talking with Respondent and dancing. (Tr. 387)

Approximately two hours and forty minutes after they arrived, an altercation broke out inside the bar. As Ms. Caban described it, "So I was dancing on the floor and then the next minute I know, I'm getting pushed and punched. Next minute I know, I open my eyes and I'm on the sidewalk on the side of the AM Bar getting pummeled to the ground, getting kicked, punched. At one point I got up, I put my hands out and, you know, yelled, 'Stop, stop.' No one was stopping; they kept, you know, beating me. My head being banged on the ground at one point." (Tr. 387-88) She further asserted that she

was being punched "everywhere." She estimated that approximately four females and one male were assaulting her. (Tr. 388)

Caban recounted that she felt hurt, confused, concerned for her safety, and disoriented during the assault. (Tr. 389) She described the injuries she received as contusions to her head, swelling and lumps on her head, bruising to her face, and noted that she had problems with her vision for about two months. (Tr. 390, 406)

As to Respondent's involvement, Caban testified she was in a complete daze and stated that she did not know where Respondent was or if he was trying to break up the fight. (Tr. 390-91, 412) She did not hear any weapon being discharged or hear Respondent saying anything. (Tr. 391, 413) When the fight stopped, she saw Respondent behind her. He grabbed her and she went with him to the corner about a block and a half away from the bar to get away from the crowd. (Tr. 391)

Ms. Caban further testified that when they got to the corner she realized she left her belongings, including her police ID, back at the bar. Respondent then handed her his firearm and directed her to safeguard it while he went back to the bar to retrieve her things. (Tr. 391-93, 413) She took the firearm which was in a holster and put it in her sweater pocket. When Respondent left, Caban noticed a crowd coming towards her so she went down a dead-end street where she thought she would be safer. (Tr. 392-93) She stayed in this location about thirty minutes and as she was trying to secure Respondent's firearm in her pants pocket, the holster fell off. Caban was unable to find it in the dark.

While Caban was waiting, a stranger approached her and asked if she was alright. At her request, he went to the bar and retrieved her belongings. He then took her to the corner and found a cab for her. (Tr. 394-95) While she was in the cab, she reached

Respondent by phone and recalled that he directed her to report to the 68 Precinct with his firearm as soon as possible. (Tr. 395) During the course of this conversation, Caban realized Respondent had discharged his firearm. She remembered feeling "grateful because my injuries could have been life threatening if it wasn't for his protection" (Tr. 396) Caban opted to head to her home first to change and wanted to go to the hospital after observing her injuries. She explained that, though her intention was to go to the precinct first, as Respondent had directed, she decided to first go home and call her delegate. (Tr. 396-97) About fifteen minutes after arriving at her residence, she received a call from a sergeant directing her to report to the 68 precinct with Respondent's firearm. (Tr. 398)

Ms. Caban went to the 68 Precinct, turned in the gun to a sergeant and requested to go to the hospital. (Tr. 399-400) She recalled that the sergeant was very concerned about her injuries. When the ambulance arrived, she was suspended with pay before being taken to the hospital. (Tr. 402)⁴

She contended that she was never interviewed or asked to give a statement on the date of the incident or in the weeks that followed. (Tr. 325, 402-03) About two and a half years after the incident she declined to give a statement to Sergeant Jimenez from IAB since she felt it was "too late" as they had not asked for her story initially. (Tr. 404-05)

Respondent provided testimony similar to Caban, characterizing the incident at the AM Bar as volatile and dangerous. He recalled finishing his tour at the 75 Precinct at 2335 hours on March 8, 2016. He stated that at the end of his tour, he left his service

⁴ Sergeant Olga Jimenez of IAB testified that she accompanied Ms. Caban to the hospital but contended that Ms. Caban's injuries did not appear to be life threatening. She stated that Caban appeared disheveled and red in the face. Ms. Caban was released from the hospital and Jimenez accompanied her back to the 68 Precinct. (Tr. 299-301)

weapon in his precinct locker. (Tr. 559) He then picked up Janice Caban and they went together to the AM Bar. (Tr. 560-61) During the course of about two and a half hours, Respondent estimated he had two to three beers. (Tr. 562)

Respondent recounted that while he was on the dance floor with Caban, a group of four or five females started to attack her "for no reason" by pulling her hair, throwing punches and kicks, and using beer bottles. (Tr. 562-63) He testified that he tried to separate the females but was unsuccessful. (Tr. 563) After what he described as about 30 seconds to a minute, the bouncers physically grabbed Ms. Caban and dragged her out of the bar. (Tr. 563-64) With what he characterized as a "very violent" assault continuing outside, Respondent tried again to physically stop the fight. When his attempts failed, he testified that he pulled out his Department ID card, "repeatedly" identified himself as a police officer and used verbal commands to try to stop the fight. (Tr. 565, 603)

Respondent stated that he next pulled out his firearm and again said, "Police, stop." When that was unsuccessful, he testified that his training from the Police Academy "kicked in" and he "shot a round from his firearm into the air as a summons for assistance." (Tr. 567) He elaborated that he was trained he could summon for assistance, "as a resort if . . . to protect life and . . . if you fear for your safety." (Tr. 568) He explained that from his experience working in a busy command, officers respond quicker to hearing shots fired than to calls which come in over the radio. (Tr. 568) He agreed that he did have his cell phone in his pocket but did not use it to make a call before removing his firearm from his pocket. He further agreed he did not call 911 or anyone affiliated with the Department after firing. (Tr. 603-04)

Respondent acknowledged there was a small group of people around when he fired the shot. (Tr. 599) He further acquiesced on cross-examination that at some point during his interaction with this group of people, he pointed his firearm at them. (Tr. 600) He testified that after he discharged his firearm, the "threat stopped immediately" and the women "tried to scatter away." He tried to "detain the aggressors" but was unsuccessful and walked away with Caban, explaining that he was in fear for their safety. (Tr. 571)

They walked to a corner where Respondent observed that Caban was "badly beaten up" with facial bruising. She told him her personal belongings were still in the bar and Respondent said he would go retrieve them. (Tr. 574) He recalled that he gave her his firearm to safeguard, emphasizing that she was a member of the service at the time and was qualified to safeguard it. (Tr. 574) He went back to the bar but the doors were locked. Respondent next got his car and went back to where he had left Ms. Caban, but could not find her. (Tr. 574-75) He then kept driving for approximately 10-20 seconds until he was pulled over by Lieutenant Caviness. He testified that he was in distress at the time from the traumatic experience. (Tr. 575)

Respondent stated that he identified himself as a police officer to Caviness and explained to him that an assault had just taken place at the AM Bar. (Tr. 576) He remembered showing Caviness cuts on his right arm that he thought were caused by a beer bottle. On cross-examination, he acknowledged that he didn't mention shooting his firearm or that another member of service had been with him during the altercation. (Tr. 607)

Caviness later asked Respondent if he had his firearm with him. Respondent told him that it was in his locker. He explained that he answered in this manner because "due

to the fact he was still in distress," he believed Caviness was inquiring about his service firearm. (Tr. 579) Caviness instructed Respondent to follow him back to the 68 Precinct.

Caviness also provided testimony regarding his apprehension of Respondent. Caviness testified that he was working as first platoon commander in the 68 Precinct on the date of the incident when he received a radio run, based on a 911 call of shots fired in the vicinity of 72nd Street and 3rd Avenue. (Tr. 183-185) The radio run, included a description of a male Hispanic in a white Honda Accord. In less than a minute, Caviness said he observed the vehicle stopped at a red light at 72nd Street and 4th Avenue. Caviness exited his car and walked over to the driver's side of the Honda Accord. He saw that Respondent was holding his shield and ID in his lap. (Tr. 186-88) He asked Respondent if he had his firearm on him and Respondent told him that it was at the 75 Precinct in his locker. (Tr. 187-88) When asked, Respondent said he was not with anyone at the bar. (Tr. 191)

Caviness testified that he walked over to the area in front of the AM Bar after instructing Respondent to remain in his vehicle. He spoke to the bouncer who advised him there had been a fight outside the bar and that a man had fired a shot in the air. Caviness looked at the ground and immediately saw a spent shell about ten inches from where the bouncer was standing. (Tr. 190, 192)

Caviness then returned to Respondent's vehicle and again asked if he was in possession of his firearm. Respondent again denied having his firearm, saying it was in his locker. Caviness further testified that he found a spent shell outside the bar and that "if he had his firearm on him, he need[ed] to tell me." He warned him that ballistics testing would be conducted on the shell to determine if it was from Respondent's firearm

(Tr. 193) According to Caviness, Respondent again denied having his firearm and further denied shooting his firearm.

Additional testimony was provided by retired Captain Edward Mamet, who at some point prior to his retirement in 1998, sat on a Firearms Discharge Review Board. He testified that under Patrol Guide 203-12 an officer is, in emergency situations, permitted to use his firearm to summon assistance. He agreed that police officers would respond immediately to shots fired without waiting for a 911 call, emphasizing that "they would go to the sound of the gunfire." (Tr. 538-39, 542) He stated that he had discharged his firearm to summon assistance "multiple times" during his career. (Tr. 541)

Firearms Discharge and Bar Incident Specifications (Specifications 6-10)

Specification 6- Reckless Endangerment

Respondent is charged with "recklessly engaging in conduct which created a substantial risk of serious physical injury to another person." Based on Respondent's own testimony and the video in evidence, I find he is Guilty of this specification.

Respondent admitted that he shot a round from his off-duty firearm into the air in an area outside a bar where a group was gathered. In defense of his actions, Respondent relied on P.G. Section 203-12 (f).

Respondent and his witness, retired Captain Mamet, were correct in pointing out that the Patrol Guide provides that, under section 203-12 (f) an officer may discharge his firearm to summon assistance in an emergency situation when someone's personal safety is endangered and unless no other reasonable means is available. However, it should be noted that the provision actually reads: "Police officers ***shall not*** discharge their firearms to summon assistance except in emergency situations when someone's personal safety is

endangered and unless no other reasonable means is available.” The very language used in this provision signals to this tribunal that a discharge of a firearm to summon assistance is only to occur as a last resort in situations where there are no other viable means of summoning assistance.

Respondent took the position that discharging a firearm to summon assistance can be justified as a quicker method of summoning police assistance than calling 911. Respondent testified that from his experience, “when we hear shots fired in the sector car, we respond to the scene of where the sound came from. And usually that’s quicker than waiting for - - for it to come over the radio.” (Tr. 568) He further testified that “[from] my experience, I believe . . . 911 . . . would take longer for police presence to respond” (Tr. 609)

The test for discharging a firearm under section P.G. 203 -12 (f) does not authorize the discharge of a firearm merely if it is perceived to be the fastest mechanism to summon help. If this were the case, anytime an officer thought it would be quicker to fire off a shot than to call 911 or to summon help in some other way, they would be free to fire rounds into the air creating very dangerous and life threatening situations. Section 203-12 (f) rather requires that – (1) there was an emergency situation where someone’s personal safety was endangered, and, (2) there were no other reasonable means of summoning assistance available. Both elements must occur to justify discharging a firearm to summons assistance. They did not in this case.

The Respondent’s description of the situation as such an emergency that someone’s personal safety was endangered is undercut by both testimony and the video. There is no credible evidence indicating that this was an emergency where anyone’s life

was in danger. Neither Respondent nor Ms. Caban called for medical aid after they fled the scene and the video depicts her walking away from the bar and not appearing unsteady. Though Respondent characterized the situation as one "where seconds count," it appears from the video, as well as from the testimony of the bouncer, to have been a bar fight, consisting mostly of hair pulling and shoving over the course of four to five minutes. The notion that the situation was a grave threat to Respondent's own safety is further undercut by Respondent's testimony that he returned unarmed to the bar, where the aggressors had retreated inside, moments later to retrieve Ms. Caban's things.

Of perhaps the ultimate significance in this case, Respondent's use of section 203-12 (f) as a defense must fail since he clearly had other reasonable means of summoning assistance. Respondent had his cellphone in his pocket during the entire incident and could have used it at some point to call 911. In addition, there were many people, including the bouncer, in the area around the fight who were not participating in the physical altercation itself. Respondent, even if he felt that he could not divert his own attention to using his cell phone could have shouted out to any one of the bystanders to call 911 for assistance. Which by his own account he never did. Mr. Thomas, the bouncer, testified that he was never requested to call for help. (Tr. 152) Since Respondent had other reasonable means to summon the intervention of police, which he failed to use before resorting to discharging his weapon, the discharge is not authorized under P.G. section 203-12 (f).

As Respondent's defense asserting that his actions were justified under P.G. section 203-12 (f) fails, the question remains whether Respondent's discharge of his firearm constituted an act of reckless endangerment to others. I find that it does.

Respondent's conduct in firing a weapon in the air in close proximity to where a crowd was gathered created substantial risks of physical injury to other people. Even if the weapon is pointed in the air, shooting in this manner creates a risk not only of serious physical injury but of death. A bullet even if not aimed directly at a person can ricochet to hit a person or can hit a person upon its return to the ground. Respondent clearly knew there were people in his immediate area but opted to take this substantial risk anyway. Respondent's action recklessly endangered everyone on the street that night as well as the other patrons in the bar and the residents in the neighboring homes.

Accordingly, Respondent is Guilty of reckless endangerment as set forth in Specification 6.

Specification 7- Interference with Investigation

With regard to Specification 7, based on Respondent's own testimony, I find him Guilty of wrongfully and without just cause interfering with an official Department Investigation. Respondent testified that when he was stopped by Lieutenant Caviness minutes after leaving the scene of an altercation where he had discharged his firearm, he failed to tell him that he had just fired his weapon on the street outside the bar or that another member of the service had been involved in an altercation with him. (Tr. 607) I find Respondent's testimony that he thought Lieutenant Caviness was only asking him if he had his service weapon disingenuous. Though he testified that he thought only of his service weapon because he was in a "state of shock," it seems far more likely that he was attempting to conceal his and Ms. Caban's involvement and culpability. This might also account for his failure to call 911.

Moreover, Caviness, who was not shown to have any animus toward Respondent or motive to lie, credibly testified that he not only asked Respondent if he had his firearm but that he asked him if he had fired his gun and indicated that a shell had been recovered from the scene. Respondent denied both possessing and firing his firearm. (Tr. 193) It strains credulity that, at that point, Respondent still believed he was referring only to the use of a service firearm. The only logical inference is that Respondent was being purposefully deceptive in his responses. By not providing this information, Respondent was delaying an investigation and interfering with the prompt collection of evidence and testimony pertaining to what had happened in what can only be reasonably interpreted as an effort to hide conduct that he knew could expose him to criminal and/or Departmental charges. As such, I find the Department has met its burden of proof as to this specification.

Specification 8- Involvement in Physical Altercation

Respondent is charged with being involved in a physical altercation *inside* the AM Bar. Though I find that outside the bar, Respondent became the aggressor brandishing the firearm and antagonizing the women with it, he is only charged with his conduct inside the bar. While he certainly became "involved" in the altercation, it is clear he was not the initial aggressor. He was seen dancing as an altercation began between Ms. Caban and two women that escalated with more people becoming involved. All that Respondent is seen doing inside the bar is attempting to separate Ms. Caban from the women but getting pushed back multiple times. Respondent, in the initial moments of the altercation inside the bar, appeared to simply be trying to deescalate the situation. For

that reason, I do not find his conduct inside the bar constituted misconduct. As the charge is limited to the altercation inside the bar, I find Respondent Not Guilty.

Specification 9- Failure to Safeguard Firearm

Based on the evidence and testimony, this tribunal finds that Respondent did not adequately safeguard his firearm in this situation. The Patrol Guide states that officers must safeguard their firearms at all times but provides little guidance as to exactly what constitutes "safeguarding." Respondent indicated that as a Member of Service on the date of the incident, Ms. Caban was "qualified" to safeguard his firearm. Sergeant Jimenez of IAB agreed that as a probationary police officer, Caban could lawfully take possession of Respondent's firearm and that it would not need to first be placed in a safe or lockbox. (Tr. 365-66) It is certainly reasonable that other Members of Service may temporarily safeguard firearms for fellow officers in some situations. However, under the circumstances, as described by Caban and Respondent, I do not find that Respondent giving his firearm to Caban constituted safeguarding.

In evaluating this specification it is important to consider the facts as presented by Respondent in order to determine whether, based on his perceptions of Ms. Caban's condition, he was justified in having her safeguard a loaded firearm. According to Respondent, Ms. Caban had been "violently" assaulted and he believed her to be "in fear" and "distress" after the incident. From his own account of her condition, Respondent therefore should not have given her a firearm to safeguard.

Therefore, Respondent is Guilty of this specification.

Specification 10- Failure to Remain at Scene

With regard to Specification 10, Respondent admitted he did not remain at the scene of the incident and/or request the response of the patrol supervisor, precinct of occurrence. Under Patrol Guide 212-32, Page 1 Paragraphs 1 and 2, "when an off duty uniformed member of the service is at an unusual police occurrence to which the uniformed member of the service is either a participant or a witness," that member must:

- 1. Remain at the scene of incident when feasible and consistent with personal safety.*
- 2. Request response of patrol supervisor, precinct of occurrence.*

The provision further notes that, "[w]hen remaining at the scene is inappropriate, the uniformed member of the service concerned may leave the scene; however, said member must promptly notify the desk officer, precinct of occurrence, and be guided by the desk officer's instructions."

In this case, the altercation in the AM Bar that resulted in Respondent discharging his firearm was certainly an unusual police occurrence. While Respondent claimed that he left the scene outside the bar because he was in fear of his personal safety, this contention is undermined by the fact that Respondent attempted to return to the bar to collect the personal belongings of Ms. Caban just minutes after the incident. Further, Respondent stated that the "threat stopped immediately" after he discharged his weapon and the women with whom Caban had been fighting immediately dispersed. As such, I am unpersuaded that it was necessary for Respondent to leave the scene of the incident.

Moreover, even if leaving the scene briefly may have been appropriate under the circumstances to remove Ms. Caban from the situation entirely so as to ensure it could not escalate again, Respondent was still obligated to notify a desk officer at the precinct

of occurrence. Respondent admitted he made no calls or notifications at any point. (Tr. 605) Accordingly, I find that Respondent did not adhere to the Patrol Guide and is therefore Guilty of Specification 10.

Alcohol Related Specifications

Turning to the specifications that relate to Respondent's alcohol consumption and subsequent investigation for driving while intoxicated, the primary issues in dispute are (i) whether Respondent was intoxicated or impaired and (ii) whether Respondent "refused" a Breathalyzer test or merely asked to wait for a PBA delegate. Testimony concerning the alcohol related charges came from Lieutenant Caviness, Sergeant Bethea Ivory, the desk officer at the 68 precinct during the incident, Sergeant Olga Jimenez of IAB, Sergeant Patrick McMahon, one of the officers who attempted to administer intoxicated driver testing, and Respondent himself.

Lieutenant Caviness acknowledged on cross-examination that during the initial car stop, he was approximately 6 to 8 inches from Respondent when speaking to him for two minutes and did not, at that time, smell any odor of alcohol on Respondent. (Tr. 219-20) He further acquiesced that he had been trained in the indicia of intoxication and that during both conversations with Respondent at his car, Respondent did not display those signs. (Tr. 229-30) He described Respondent's demeanor at this time as calm and agreed he was outwardly cooperative. (Tr. 207, 220)

Caviness allowed Respondent to drive his car back to the 68 Precinct with an escort in front and back. (Tr. 195, 230) He explained that he permitted Respondent to drive because he was not investigating a possible DWI at the time and was more

concerned about the firearm discharge. (Tr. 196) He did not receive any report of a problem with Respondent's driving back to the precinct. (Tr. 230)

Upon returning to the precinct, Caviness interviewed Respondent in the muster room where Respondent refused to give him his driver's license. At this time, he came to the conclusion that, "I did smell a moderate amount -- amount of alcohol from his breath. I could see that his eyes was [sic] glassy, and he was disheveled." (Tr. 197) He contended that he was unable to make these observations during the car stop because of the lack of lighting. He also noted that he was close to Respondent at this time, about three inches away from him. (Tr. 198)

Caviness left Respondent to speak to the duty captain and was later informed by the desk officer that Respondent had been in the bathroom for fifteen minutes. He knocked on the door several times and could hear that Respondent was on the phone and that water was running. (Tr. 199, 236) Respondent refused to open the door. In response Caviness to broke it down. Caviness asserted that these actions, combined with the intoxication indicia he had observed, led to his determination that Respondent was unfit for duty. He explained, "[t]hese are not normal actions of a police officer." (Tr. 199) However, he noted that even without the odor of alcohol, he would have found Respondent unfit for duty because he was "very, very uncooperative and combative [at the precinct]," refusing to answer any questions and asking for his delegate. (Tr. 201) At the same time, [REDACTED] after conferring with the duty captain. (Tr. 200-02)

Respondent was taken to the Intoxicated Driver Testing Unit at the 78 Precinct. (Tr. 200, 203) Caviness testified that Respondent verbally refused to take the breath or

the coordination test. (Tr. 203-04)⁵ He noted that Respondent continued to be "combative" while at the 78 and did not recall him asking for a delegate at this time. (Tr. 207, 246) On cross-examination, he agreed that he testified at Respondent's subsequent Department of Motor Vehicles hearing. When the transcript was read into the record indicating that Caviness had testified that Respondent indicated that he did not want to take tests without PBA representation, he indicated that he did not recall this testimony but did not contend that the transcript was incorrect. (Tr. 246-47) He agreed that he had learned that the DMV judge dismissed the refusal claim in Respondent's favor but noted he did not know the judge's reasoning. (Tr. 249-50)

Upon returning to the 68 precinct, Lieutenant Caviness filled out paperwork for the Intoxicated Driver Exam (DX 7), a fitness for duty report (DX 6), [REDACTED] and a voucher for an opened half full pint of Hennessy⁶ found in the glove box of Respondent's car. (Tr. 203) He acknowledged on cross-examination that he did not check the box for bloodshot eyes, only checking that his eyes were glassy, on the intoxicated drivers examination form but agreed that he did testify to Respondent having blood shot eyes in the ensuing criminal case on April 9, 2014. (Tr. 238-39) He also agreed that he checked that Respondent's speech was normal and his balance was steady. (DX 6 & DX7)

Sergeant Ivory provided a similar account of smelling alcohol emanating from Respondent's person at the precinct. She testified on direct examination that she was

⁵ Sergeant Patrick McMahon of Highway District Two was one of two officers assigned to perform an intoxicated driver test on Sanchez. (Tr. 18-19) Rogers reported that Respondent refused to take the test but agreed that prior to the test, Respondent asked for a PBA delegate. (Tr. 19, 31-32) He stated that the IDTU report, prepared by his partner, Officer Rogers indicated that Respondent's speech was clear and his balance was steady but noted bloodshot and watery eyes. The report concluded that the IDTU technician was unable to determine if Respondent was intoxicated. (DX 1).

⁶ Caviness agreed that he did not know how long the bottle had been there, when it had last been accessed or whether Respondent consumed from it at all. (Tr. 264)

working as the desk officer at the 68 Precinct when Respondent was brought in with Caviness and other members from the command behind him. (Tr. 88) She was already aware Respondent was a Member of Service who was the subject of an ongoing investigation. (Tr. 89, 100) Ivory briefly approached Respondent to ask if he was alright and if he had called for representation. (Tr. 90-91) She testified that he did not answer her but mumbled and waved her off. At that point, Ivory observed that Respondent's shirt was torn and his eyes were red. She also smelled alcohol "coming from the vicinity when I spoke with him," specifying "I smelled it emanating from his breath." (Tr. 91, 103, 464) She further recalled that when Respondent got up to use the restroom, his gait was "a little off . . . a little heavy." (Tr. 93)

On cross-examination, Ivory acquiesced that red eyes are not necessarily a sign of intoxication but could be the result of involvement in a physical fight. (Tr. 104-05) She also agreed that Respondent parked his own vehicle upon arriving at the precinct and that no issues with his parking job were brought to her attention. (Tr. 111)

Ivory had a GO-15 interview hours after her encounter with Respondent. (Tr. 105) She stated in that interview that she did not have a conversation with Respondent, explaining instead it was a back-and-forth exchange and noting that Respondent did not respond to her other than "mumbling something." (Tr. 467-68, 505-06) At no point in this GO-15 did she mention that she smelled alcohol in the vicinity of Respondent and even specifically responded that she did not smell alcohol emanating from his person while in close proximity of him several times. (Tr. 466, 474-75, 478, 483-85, 508) She did, however, tell investigators that his eyes were glazed and glassy. (Tr. 481)

Sergeant Jimenez was an IAB investigator assigned to work on Respondent's case. As part of her duties, she reviewed the GO-15 interviews of several officers who had some interaction with Respondent following the car stop. (Tr. 316-18) She testified that Police Officers Diaz, Malhi, Diaz, and Lafaar, stated they did not detect any odor of alcohol during their interactions with Respondent. (Tr. 317-19)

Finally, Respondent testified that he had two to three beers during the two to three hours he was at the AM Bar. (Tr. 562)⁷ At the precinct, Respondent stated that he went in the bathroom to try to contact his delegate by cell phone because he believed he was under "Department investigation." (Tr. 582-83) He indicated that his delegate told him to stand by as it would take a "couple hours" for him to arrive. Respondent testified he communicated to Caviness that his delegate was on his way and that he would have been willing to take the Intoxicated Driver Examination Test once his delegate arrived. (Tr. 590)

Respondent noted that [REDACTED] at an administrative DMV hearing, the ALJ ruled that he did not refuse testing and reinstated his license. (Tr. 592-93)

Specifications 1, 2, 4 & 5- Driving While Intoxicated/Impaired and Fitness for Duty

Specification 1 charges Respondent with operating a motor vehicle under the influence of an intoxicant and Specification 2 charges Respondent with operating a motor vehicle while his ability was impaired by the consumption of alcohol. Specification 4 charges Respondent with consuming alcohol to the extent he was unfit for duty and Specification 5 charges him with consuming alcohol to the extent that he was unfit for

⁷ Caban testified similarly as to Respondent's consumption. (Tr. 385-87, 406-08)

duty while armed. Having carefully reviewed the evidence and testimony, I find that the Department has not proved by a preponderance of the credible evidence that Respondent was intoxicated or impaired, and therefore find Respondent Not Guilty of Specifications 1, 2, 4, and 5.

The only testimony that Respondent had the odor of alcohol on his breath came from the two witnesses, Lieutenant Caviness and Sergeant Ivory, who only made these observations when Respondent was already at the precinct and not before or while he was operating a motor vehicle or while he was armed as he did not have any weapon on him in the Precinct. I do not credit Sergeant Ivory's testimony at trial regarding her recollection of the odor of alcohol emanating from Respondent's breath primarily because she did not mention anything about smelling alcohol on Respondent and even specifically denied detecting any alcohol emanating from his person at her GO-15 interview shortly after the incident. It strains credulity that she would have quickly forgotten this observation, which is central to the allegations against Respondent. It also seems highly unlikely that her memories would improve at trial nearly three years after the incident.

With regard to Lieutenant Caviness, he did little to persuade the tribunal that Respondent was operating his vehicle under the influence of alcohol as Caviness had two conversations with Respondent at the time he stopped him in his car and did not smell any odor of alcohol on his breath at that time or observe any other indicia of intoxication while standing approximately six inches away from Respondent. If Respondent did have the odor of alcohol on his breath it seems more likely than not, based on the fact that he spoke with him for two to three minutes and the short distance he was away from

Respondent, that Caviness would have smelled the alcoholic odor on Respondent's breath if it existed at the time he was driving. It is also extremely difficult to reconcile the fact that Caviness allowed Respondent to drive his own vehicle back to the precinct but later contended he was intoxicated at the precinct. The fact that there was better lighting in the precinct is simply not enough to persuade the tribunal of Respondent's intoxication or impairment. Further, the testimony as to bloodshot eyes and combative behavior, which I note was not described in any sort of detail, could just as reasonably be a result of the stress of this situation or the late hour.

In addition, while it is hearsay evidence, the fact that none of the other officers who had contact with Respondent at the scene where his vehicle was stopped, whose interviews were reviewed by Sergeant Jimenez, reported smelling any odor of alcohol further weakens the Department's position. (Tr. 316-20) Finally, even the experienced Highway officer who routinely deals with intoxicated person was unable to conclude that Respondent was intoxicated. (DX 1) Considering all the circumstances and facts, the tribunal determines that the Department did not meet its burden of proving Respondent was intoxicated or impaired due to consumption of alcohol. Accordingly, I find Respondent Not Guilty of these four specifications that allege he was intoxicated or impaired by alcohol.

Specification 3- Refusal of Breathalyzer Test

As to Specification 3, it is not contested that Respondent did not submit for a Breathalyzer test or any coordination testing. Respondent's counsel asserts that he did not "refuse" the Breathalyzer as charged and simply "requested the presence of [PBA]

representation as he is legally entitled to do." (Tr. 629) That defense does not hold up for the following reasons.

Respondent states that he wanted his PBA delegate present because he believed he was under "Department investigation." While it is true that [REDACTED] IAB is notified and an investigation commences, Respondent was also the subject of a criminal investigation for driving while intoxicated. The tribunal finds that it was as a result of that criminal investigation that he was asked to take the Breathalyzer test. While Respondent certainly had the right to have a delegate present before answering questions from IAB investigators or sitting for a GO-15 interview, his counsel pointed to no specific provision of his PBA contract, Patrol Guide provision, or DCT precedent that indicates that an officer who is the subject of criminal DWI investigation may insist on waiting for his delegate to arrive before taking a Breathalyzer. This tribunal is aware of no such provision or precedent.

Moreover, a Breathalyzer test is intrinsically time sensitive. Respondent testified that he was able to reach his delegate by phone and his delegate indicated that he was a "couple hours" away, which Respondent contended he told Lieutenant Caviness. As such, the accuracy integrity of the test could have been compromised by the time the delegate actually arrived. In 1991, the Court of Appeals found that when a defendant's indicated his attorney could not be contacted for several hours, his insistence on waiting for the attorney constituted a refusal. *People v. O'Rama*, 78 N.Y.2d 270 (1991), citing *People v. Gursey*, 22 N.Y.2d 224 (1968) ("But, to be sure, there can be no recognition of an absolute right to refuse the test until a lawyer reaches the scene."). Even if this tribunal were to find that Respondent had a right to have his delegate present, which it has not,

Respondent's insistence on waiting a "couple hours" for a specific delegate to arrive cannot reasonably be construed as anything other than a refusal to take the test.

Accordingly, Respondent is found Guilty of Specification 3.⁸

PENALTY RECOMMENDATIONS

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974). Respondent was appointed to the Department on January 11, 2010. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Department seeks the penalty of termination, arguing that Respondent cannot be trusted to use proper judgment or handle a firearm and therefore cannot remain a Uniformed Member of Service. Respondent's counsel cited seventeen cases, the vast majority of them negotiated pleas, to support his assertion that a penalty less than termination was warranted. While I will not distinguish them individually, I note that a full record as to those matters were not available for this tribunal's analysis. Further, while some charges may be similarly worded, it appears they are not factually analogous to the instant matter - - some of these cases do not even involve a firearm discharge and

⁸ In making this finding, I note there was unrefuted testimony that a Department of Motor Vehicles hearing, where Respondent was alleged to have refused the Breathalyzer and where Lieutenant Caviness testified, resulted in the administrative judge finding in Respondent's favor and restoring his driver's license. (Tr. 249-50, 592-93, 629-30) The tribunal declines to consider this ruling as there is no record, transcript, decision or other explanation of the judge's rationale in the record. Additionally, I note that the two hearings were for very different purposes. The present matter is an administrative disciplinary hearing involving Respondent's employer, the Department and the DMV hearing was for the discrete issue of determining whether to restore Respondent's driver's license. Accordingly, the DMV result is neither binding on nor particularly enlightening for this tribunal.

many involve an accidental discharge, a marked difference from Respondent's admittedly intentional discharge.

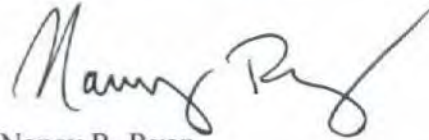
While it is true that there may be firearms discharge cases where the penalty imposed was less than dismissal, I find that termination is warranted here based on the complete lack of judgment and concern for the safety of others that Respondent showed by purposefully discharging his firearm knowing a crowd was present and then to repeatedly point his firearm at women, often at very close range, who had been involved in a bar fight with his girlfriend. I note that Respondent had just over three years of service at the time of this incident and therefore had been trained in firearms discharge relatively recently.

Making things worse, Respondent engaged in efforts to first conceal this incident from the Department and then to mislead the responding officers about what had transpired. Respondent did not call for police assistance during the incident. Subsequently, he did not make requisite notifications once the altercation had ended and he had ample opportunity to do so. Then, in what only can reasonably be interpreted as an effort to hide his culpability, Respondent deceptively represented to the responding lieutenant that his firearm was in locker, knowing that Caban was in possession of another firearm, that he had just discharged. Additionally, he denied shooting his firearm even after Caviness confronted him about the recovered shell. Finally, he continued to disingenuously represent to this tribunal that he believed the lieutenant was asking him about a different firearm. Based on this egregious conduct, I find that Respondent can never again be trusted with a firearm. Also, he also cannot be trusted to be forthcoming with supervisors. As such, he cannot remain a Uniformed Member of Service.

Department precedent supports that members who intentionally discharge a firearm in a reckless manner may be dismissed from the Department. *See Case Nos. 2007-83211 & 2009-85135* (May 17, 2011), *aff'd, Matter of Amador v. Kelly*, 109 A.D.3d 762 (1st Dep't 2013) (Nine-year police officer with no prior disciplinary history dismissed for recklessly creating a risk of injury to another person by firing his gun in the direction of his girlfriend, failing to report the incident to the Department, and abusing sick leave); *Case No. 2007-83438* (August 4, 2009) (five-year officer with no disciplinary record dismissed for failing to safeguard his firearm, notify the Department and remain at the scene after discharging his firearm during an off-duty traffic dispute. Respondent contended he was in fear for his safety and was not going to wait to see if the driver had a weapon); *Case No. 1998-73003* (April 5, 1999) (six-year officer with no disciplinary record dismissed for wrongfully discharging a BB gun after taking custody of it at a crime scene, causing damage to property and lying about his actions to Department investigators). In fact, separation has been deemed warranted in cases where a firearm was merely brandished and not discharged. *See Case No. 2009-85841* (March 9, 2011) (Seventeen-year police officer with no prior disciplinary record negotiated a penalty of 31 suspension days, one year dismissal probation, forfeiture of all time/leave balances, and immediate vested-interest retirement for confronting several unruly passengers on a LIRR train and brandishing his firearm at them in an attempt to quiet them down); *Case Nos. 1996-71268, 1996-71269* (July 16, 1997), *aff'd, Anderson v. Safir*, 260 A.D.2d 179 (1st Dep't 1999) (two officers dismissed for pointed their guns at a civilian couple during an off-duty traffic dispute and lying about the incident at Department interviews).

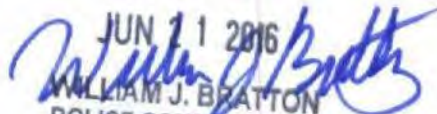
Accordingly, I recommend that Respondent be DISMISSED from the
Department.

Respectfully submitted,



Nancy R. Ryan
Assistant Deputy Commissioner Trials

APPROVED

JUN 11 2016

WILLIAM J. BRATTON
POLICE COMMISSIONER

From: Assistant Deputy Commissioner Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER LESTER SANCHEZ
TAX REGISTRY NO. 948561
DISCIPLINARY CASE NO. 2013-9203

Respondent was appointed to the Department on January 11, 2010. His last three performance evaluations were as follows: he received a 3.5 overall rating of "Highly Competent/Competent" in 2012 and 2015 and a 3.0 overall rating of "Competent" in 2011. He has been awarded one medal for Excellent Police Duty. [REDACTED]

[REDACTED].

Respondent has no prior formal disciplinary history. He was suspended and subsequently modified in connection with the incident that is the subject of the instant charges.

For your consideration.

Nancy R. Ryan
Assistant Deputy Commissioner Trials